

EXHIBIT “I”

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
LAMONT BROOKS,Index No.: 160720/2018
Date Purchased: 11/16/2018

Plaintiff,

**AMENDED
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER SEAN BROWN (TAX ID #948704), POLICE OFFICER ANTHONY ASSENT (SHIELD #00306), POLICE OFFICER LOGAN PAYANO (SHIELD #00816), DETECTIVE JOSEPH FRANCO (SHIELD #07922) and POLICE OFFICERS JOHN DOE #1-2, (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

Defendants.
-----X

Plaintiff LAMONT BROOKS, by his attorneys LOZNER & MASTROPIETRO, as and for his Amended Verified Complaint, respectfully alleges as follows:

1. That at all times herein mentioned the Plaintiff, LAMONT BROOKS, was a resident of the County of New York, City and State of New York.
2. That at all times hereinafter mentioned the Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.
3. That at all times hereinafter mentioned the Defendant, THE CITY OF NEW YORK, maintained, operated and controlled the Police Department within The City of New York.
4. That at all times hereinafter mentioned the Defendant, THE CITY OF NEW YORK, employed police officers, in its police force.

5. That at all times hereinafter mentioned the police officers employed by the Defendant, THE CITY OF NEW YORK, including but not limited to Defendants POLICE OFFICER SEAN BROWN (TAX ID #948704), POLICE OFFICER ANTHONY ASSENT (SHIELD #00306), POLICE OFFICER LOGAN PAYANO (SHIELD #00816), DETECTIVE JOSEPH FRANCO (SHIELD #07922) and POLICE OFFICERS JOHN DOE #1-2", were servants, agents and/or employees of the Defendant, THE CITY OF NEW YORK, and were acting within the scope of their employment.

6. That on or about the 15th day of August, 2017, the Plaintiff, LAMONT BROOKS, was lawfully on, at, near North West Corner of 2nd Avenue & East 3rd Street in New York, New York.

7. That on or about the 15th day of August, 2017, while the Plaintiff, LAMONT BROOKS, was lawfully on, at, near North West Corner of 2nd Avenue & East 3rd Street in New York, New York, the Defendants, their agents, servants and/or employees, intentionally, and without legal justification, unlawfully and unreasonably arrested, imprisoned, detained and restrained the Plaintiff, LAMONT BROOKS.

8. From the time of initial arrest on August 15, 2017 until August 22, 2017, Plaintiff LAMONT BROOKS was continuously kept in unlawful police custody and/or unlawfully confined against his will without his consent in contradiction of law.

9. Upon information and belief, upon the New York County District Attorney's Office Motion to Dismiss, made on or around August 21, 2017, all charges against Plaintiff LAMONT BROOKS were dismissed and the criminal case file was sealed.

10. Upon information and belief, on or around August 22, 2017 Plaintiff, LAMONT BROOKS was released from custody in Rikers Island.

11. That at all times herein mentioned, the Plaintiff, LAMONT BROOKS, was falsely arrested, imprisoned, detained and restrained by police officers of defendant THE CITY OF NEW YORK, (hereinafter "defendant NYC") who were agents, servants and/or employees of the Defendant NYC, and who were acting within the scope of their employment.

12. That as a result of the false imprisonment and false arrest of the Plaintiff, LAMONT BROOKS, by the Defendants, their agents, servants and/or employees, the Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, deprivation of civil rights and freedom, severe personal injuries, and economic damages.

13. That the false arrest and imprisonment of the Plaintiff, LAMONT BROOKS, constituted a malicious act, and was a wanton and reckless degradation of the Plaintiff's liberty and freedom.

14. That heretofore and on or about 17th day of November, 2017, and within ninety days after the cause of action herein accrued, there was served upon THE CITY OF NEW YORK, a Verified Notice of Claim, which set forth the nature of this claim herein, including the time and place where the incident occurred, and the nature and extent of the injuries sustained by the Plaintiff. Said Verified Notice of Claim was duly served upon the Defendant NYC, within ninety days after the occurrence of said incident as set forth herein.

15. That pursuant to Section 50-h of the General Municipal Law, a statutory hearing was held on the 23rd day of July, 2018.

16. That less than one year and ninety days had elapsed between the occurrence of the said incident upon which the original complaint was based and the filing of said complaint.

17. That more than 60 days have passed since the Verified Notice of Claim was served and more than 60 days have passed since the 50-h hearing was held and the Defendants and the NYC Comptroller have wholly refused and neglected to make any adjustment or payment thereof.

18. Upon information and belief, in August 2017, the Individual Defendants arrested Plaintiff without probable cause during a “broken windows” policing-style.

19. The Individual Defendants fabricated evidence against Plaintiff, LAMONT BROOKS and another person, criminal co-defendant Michael Miller, including sworn allegations that Defendant, DETECTIVE JOSEPH FRANCO (SHIELD #07922) (hereinafter “defendant Franco”) “observed [criminal co-defendant Michael] Miller speaking to SCD Emanuele Gelsomini”. Defendant Franco further informed co-defendant police officers that he “then observed SCD Gelsomini hand [criminal co-defendant Michael] Miller United States (hereinafter “US”) currency” and then “observed [criminal co-defendant Michael] Miller walk away from the location.”

20. Defendant, POLICE OFFICER SEAN BROWN (TAX ID #948704) (hereinafter “defendant Brown”) alleged that he observed Mr. Miller hand Plaintiff, LAMONT BROOKS US currency in exchange for small items on the northwest corner of 2nd Avenue and 3rd Street, New York, New York.

21. Defendant Brown alleged that Defendant Franco informed him that he then observed Mr. Miller return to SCD Gelsomini and hand the SCD several small items.

22. Defendant Brown alleged that he recovered one hot crack pipe containing residue from Mr. Miller’s left front pants pocket.

23. Defendant Brown alleged that Defendant, POLICE OFFICER LOGAN PAYANO (SHIELD #00816) (hereinafter “defendant Payano”) informed him that he stopped SCD Gelsomini and recovered two twists containing crack/cocaine from his fanny pack.

24. Defendant Brown alleged that Defendant, POLICE OFFICER ANTHONY ASSENT (SHIELD #00306) (hereinafter “defendant Assent”) informed him that he recovered \$27 from Plaintiff, LAMONT BROOKS’ left front pants pocket and marijuana from his right front pants pocket.

25. For approximately six days, the individual Defendants and others falsely stated and swore that Plaintiff, LAMONT BROOKS (hereinafter “Plaintiff”) committed criminal acts constituting the sale of a controlled substance in the third degree. They maintained those false claims in documents given to prosecutors that led to Plaintiff’s prosecution.

26. Only when Plaintiff’s criminal defense attorney obtained video footage during the course of the criminal prosecution was the case dropped and Plaintiff’s liberty restored.

27. The video evidence demonstrates that Plaintiff was innocent of the charges leveled against him and that the officers had lied in order to further his prosecution and protect themselves from a false arrest. This suit now follows.

28. Plaintiff, LAMONT BROOKS is a resident of Bronx, New York and a citizen of the United States.

29. Defendant Brown was an officer in the New York City Police Department, who at all relevant times acted under color of state law, and who is sued both in his individual capacity and as and agent, servant and/or employee of the Defendant NYC, were acting within the scope of their employment.

30. Defendant Assent was an officer in the New York City Police Department, who at all relevant times acted under color of state law, and who is sued both in his individual capacity and as and agent, servant and/or employee of the Defendant NYC, were acting within the scope of their employment.

31. Defendant Payano was an officer in the New York City Police Department, who at all relevant times acted under color of state law, and who is sued both in his individual capacity and as and agent, servant and/or employee of the Defendant NYC, were acting within the scope of their employment.

32. Defendant Franco was a detective in the New York City Police Department, who at all relevant times acted under color of state law, and who is sued both in his individual capacity and as and agent, servant and/or employee of the Defendant NYC, were acting within the scope of their employment.

33. Defendant NYC is a municipal corporation existing under the laws of the State of New York.

34. Plaintiff, LAMONT BROOKS was charged with crimes he did not commit.

35. Defendants Brown, Assent, Payano and Franco swore out a felony criminal complaint that included numerous false statements. The aforementioned criminal complaint incorporated by reference false statements made by Defendants Brown, Assent, Payano and Franco.

36. Defendants Brown, Assent, Payano and Franco falsely swore that Plaintiff, LAMONT BROOKS received US currency in exchange for small items on the North West corner of 2nd Avenue and 3rd Street and \$27 was recovered from Plaintiff, LAMONT BROOKS' left front pants pocket and marijuana from his right front pants pocket.

37. Based on those false statements, Plaintiff, LAMONT BROOKS was charged with Criminal Sale of a Controlled Substance in the Third Degree, a class B Felony. That charge potentially subjected Plaintiff, LAMONT BROOKS to years of imprisonment.

38. After Plaintiff LAMONT BROOKS' counsel in the underlying criminal case obtained a video of the area where Plaintiff was standing at the time the supposed criminal activity falsely

alleged to have been committed by Plaintiff supposedly took place, the prosecutors moved to dismiss the criminal matter. The Supreme Court, Criminal Term, agreed and then dismissed the criminal charges.

39. That this action falls within one or more of the exceptions set forth in Section 1602 of the CPLR.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, LAMONT BROOKS**

40. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

41. That the Plaintiff, LAMONT BROOKS, was lawfully on, at, near the North West Corner of 2nd Avenue & East 3rd Street in New York, New York, when the Defendants, their agents, servants and/or employees, intentionally, and without legal justification, unlawfully and unreasonably arrested, imprisoned, detained and restrained the Plaintiff, LAMONT BROOKS.

42. From the time of his initial arrest on August 15, 2017 until August 22, 2017, Plaintiff LAMONT BROOKS was continuously kept in unlawful police custody and/or unlawfully confined against his will without his consent in contradiction of law.

43. That by reason of the foregoing, the Plaintiff LAMONT BROOKS has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION ON
BEHALF OF THE PLAINTIFF, LAMONT BROOKS**

44. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

45. That subsequent to above-mentioned false arrest, Defendants did maliciously cause a criminal prosecution to be commenced against Plaintiff by filing an accusatory instrument, without probable cause and in bad faith.

46. That in commencing and continuing said malicious prosecution, Defendants caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

47. That Plaintiff had not committed or attempted to commit any illegal act(s).

48. That Plaintiff had not given Defendants probable cause to believe that he had committed the illegal acts of which he was accused.

49. That Defendants knew or should have known through the exercise of proper investigatory procedure and reasonable care that said investigation was false, flawed and incomplete.

50. That the legal proceedings maliciously instituted and maintained against Plaintiff were favorably terminated on or about August 21, 2017.

51. As a result of the aforementioned malicious prosecution, Plaintiff suffered and continues to suffer substantial damages.

52. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

53. That by reason of the foregoing the Plaintiff, LAMONT BROOKS, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF THE PLAINTIFF, LAMONT BROOKS**

54. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

55. That on or about the 15th day of August, 2017, the Defendants, their agents, servants and/or employees, without cause of justification, or the consent of the Plaintiff, did place the Plaintiff in fear of imminent physical harm.

56. That by reason of the foregoing the Plaintiff, LAMONT BROOKS, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, LAMONT BROOKS**

57. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

58. That on or about the 15th day of August, 2017, the Defendants, their agents, servants and/or employees, without cause or justification and without the consent of the Plaintiff, did wantonly and unlawfully engage in excessive, unlawful physical contact with the Plaintiff.

59. That as a result of the foregoing assault and battery on the part of the Defendants, their agents, servants and/or employees, as aforesaid, the Plaintiff was rendered sick, sore, lame and disabled; was caused to suffer emotional injuries; has suffered and will continue to suffer agony in body and mind; was and will be rendered unable to attend to his usual duties; and will be compelled to secure medical aid and treatment, in an endeavor to minimize his injuries, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

60. That by reason of the foregoing, the Plaintiff, LAMONT BROOKS, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, LAMONT BROOKS**

61. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

62. The Fifth and Fourteenth Amendments guarantee that every person who is subject to criminal charges has the rights to a fair trial, to timely disclosure of favorable information (i.e., *Brady* and *Giglio* information), and not to have false or fabricated evidence presented against the accused.

63. Together and individually, the individual Defendants forwarded false information and fabricated evidence to prosecutors.

64. The criminal complaint, sworn to by Defendant Brown as the charging instrument in Plaintiff's unjust, malicious and unconstitutional criminal prosecution, arrest and incarceration, was created by defendants and/or based upon knowingly false statements made by defendants, the aforesaid criminal complaint thereby falsely alleging as follows:

“On or about August 15, 2017 at about 6:17 P.M., at the north west corner of 2 Avenue & 3 Street in the County and State of New York, the defendants knowingly and unlawfully sold a narcotic drug.

I am informed by Detective JOSEPH FRANCO, Shield # 07972 of the Narcotics Borough Manhattan South, that he observed defendant Miller speaking to SCD Emanuele Gelsomini (M17649737). I am further informed by Detective Franco that he then observed SCD Gelsomini hand defendant Miller USC and then observed defendant Miller walk away from the location.

I observed defendant Miller hand defendant Brooks USC in exchange for small items on the northwest corner of 2 Avenue and 3 Street.

I am further informed by Detective Franco that he then observed defendant Miller return to SCD Gelsomini and hand the SCD several small items.

I recovered one hot crack pipe containing residue from defendant Miller's left front pants pocket.

I am informed by Police Officer LOGAN PAYANO, Shield # 00816 of the Narcotics Borough Manhattan South, that he stopped SCD Gelsomini and recovered two twists containing crack/cocaine from his fanny pack.

I am informed by Police Officer ANTHONY ASSENT, Shield # 00306 of the Narcotics Borough Manhattan South, that he recovered \$27 from D Brooks' left front pants pocket and marijuana from his right front pants pocket.

I believe the substance is what it is alleged to be based upon: my professional training as a police officer in the identification of drugs, my prior experience as a police officer making drug arrests, the odor emanating from the substance, an observation of the packaging, which is characteristic of this type of drug and a field test of the substance which confirmed that the substance is in fact what it is alleged to be."

65. These Defendants knew, or were deliberately indifferent to the fact, that the false information and fabricated evidence they created and communicated to prosecutors were likely to cause the initiation and continuation of criminal proceedings against Plaintiff, LAMONT BROOKS, and likely to influence a jury verdict.

66. Defendants withheld from prosecutors and from the defense material information favorable to the defense – the disclosure of which was required under *Brady v. Maryland*, *Giglio v. United States*, and their progeny – including, but not limited to, their knowledge that Plaintiff LAMONT BROOKS did not sell or participate in sale of the Controlled Substance.

67. The non-disclosure of *Brady* and *Giglio* information directly and proximately caused the initiation and continuation of criminal process against Plaintiff LAMONT BROOKS.

68. When some of the *Brady* and *Giglio* information came to light, prosecutors terminated the criminal proceedings against Plaintiff LAMONT BROOKS.

69. As a direct and proximate result of Defendants' acts and omissions, the Defendants deprived the Plaintiff of his liberty and property.

70. Defendant the City of New York maintains a custom and policy of failing to discipline police officers who provide false testimony in sworn charging documents, which caused Plaintiff, LAMONT BROOKS to suffer the loss of liberty described in this Complaint.

71. Prior to Plaintiff, LAMONT BROOKS' arrest, policymaking officials at the New York City Police Department ("NYPD") – acting with deliberate indifference to the constitutional rights of individuals suspected or accused of criminal activity; to the risk of arresting, prosecuting, and convicting innocent people; and to the rights of all criminal suspects and criminal defendants to due process and a fair trial – implemented patently inadequate policies, procedures, regulations, practices, customs, training, supervision, and discipline concerning:

- a. false statements and testimony by police officers;
- b. the duty of police officers not to fabricate evidence against criminal defendants or suspects; and
- c. the continuing duty of police officers to preserve and to make timely disclosure to prosecutors, during criminal investigations and prosecutions, of all material evidence or information (i.e., *Brady* and *Giglio* material) favorable to a person suspected, accused or convicted of criminal conduct, including, but not limited to: evidence of innocence; and evidence that a police or prosecution witness made false statements, is unreliable, or lacks credibility.

72. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices, and/or customs (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for the Defendant NYC, including but not limited to, the New York City Police Commissioner, who knew (or should have known):

- a. to a moral certainty that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases;

- b. that such issues either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations as well as the incentives that police employees have to make the wrong choice; and
- c. that the wrong choice by such employees concerning such issues will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

73. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraph based upon, among other circumstances:

- a. credible allegations, many substantiated by judicial decisions, finding that NYPD officers had wrongfully withheld material evidence or knowingly given false or misleading testimony;
- b. civil lawsuits, some of which resulted in substantial verdicts, judgments, or settlements, credibly alleging that police had falsified, exaggerated, or withheld material evidence, or made false statements in reports and testimony;
- c. numerous decisions of the United States Supreme Court, the United States Court of Appeals for the Second Circuit, the New York Court of Appeals, and the New York Appellate Division, discussing the difficult issues that regularly arise under *Brady*;
- d. judicial decisions directly criticizing the NYPD for failing to train and supervise officers in their *Brady* obligations and for failing to adopt adequate *Brady* disclosure policies, see, e.g., *Cordero v. City of New York*, 282 F. Supp. 3d 549, 554 & n.1 (E.D.N.Y. *Carter v. Harrison*, 612 F. Supp. 749 (E.D.N.Y. 1985), and putting the NYPD on notice that the City could be held liable for its failure to adequately train police officers and investigators regarding their obligations to provide truthful testimony and to disclose evidence that favors criminal defendants under *Brady*, see *Walker v. City of New York*, 974 F.2d 293 (2d Cir. 1992);
- e. formal reports of the New York City Comptroller's Office and the Bar Association of the City of New York criticizing the NYPD and the New York City Law Department for failing to follow up substantial civil settlements for police misconduct with disciplinary or other remedial action; and

- f. numerous reports of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department (“Mollen Commission”) and subsequent commissions, finding that the NYPD failed to take sufficient steps to deter and correct perjury and falsification of evidence by police officers.

74. In June 2018, NYPD Commissioner James P. O’Neill appointed an independent panel (the “White Panel”) to conduct a review of the NYPD’s internal discipline system. The panel consisted of the Honorable Mary Jo White, its chair; the Honorable Robert L. Capers; and the Honorable Barbara S. Jones.

75. That panel found that the NYPD’s internal processes encourage and condone false statements.

76. While patrol guide § 203-08 requires dismissal for making an intentional false statement, officers are almost never charged under this section and are instead charged under provisions used to avoid punishing dishonesty.

77. Even where officers were found to have violated § 203-08, the Department’s trial commissioners recommended punishments that allowed officers to remain employed despite the presumptive dismissal penalty.

78. The City’s Commission to Combat Police Corruption has recommended that the NYPD charge under §203-08, but the Department refuses to do so.

79. The White Panel noted that the practice of “handing off” arrests for administrative convenience leads to false testimony from officers, who claim to have witnessed all facts in a case, when in fact, they did not. This practice allows certain officers to earn overtime, but according to police supervisors, tolerating “this practice...promotes a culture in which more egregious falsehoods occur.”

80. Prosecutors in the five New York City District Attorneys’ offices make coordinated efforts to protect officers they know to be frequent fabricators. In one instance in Staten Island, for example, an assistant district attorney dismissed a case in order not to “burn” one of the police

officers by revealing his false statements. No case was brought against that officer for perjury.

81. The practice of “testilying” has become so ingrained in the NYPD that it spawned that neologism. There are never consequences for those officers. The New York Times reported on a similar instance in the Bronx, where officers lied about a search that happened in a New York City, claiming that they moved a laundry bag in a hallway and felt a heavy thud inside it as they moved it. That never happened. When video disproving the incident was found, the case was dropped, but the police officers were not charged for their perjury. The New York Times reviewed 25 other cases with similar “testilying” issues.¹

82. Another recent case seeks to make public a list of officers that the Manhattan District Attorney knows to be untruthful and therefore refuses to put on the stand. Those officers are not punished, however; they are merely not allowed to be used in court.²

83. This case arises from the same pattern and practice. The prosecutor in Plaintiff, LAMONT BROOKS’ case dismissed the case upon learning that there existed video evidences establishing the officers had been lying about what had occurred with Plaintiff, LAMONT BROOKS. The prosecutor, however, did not initiate charges against those officers for their perjured testimony.

84. The culture of testilying created by the failure to discipline officers for their false testimony has caused NYPD officers throughout the city to make up events and charges.

85. Under the principles of municipal liability for federal civil rights violations, the City’s Police Commissioner (and/or his authorized delegates), has final responsibility for training, instructing, supervising, and disciplining police personnel with respect to the investigation and prosecution of criminal matters, including constitutional requirements governing truthful statements and testimony, and the disclosure of *Brady* and *Giglio* material.

86. The Police Commissioner, personally and/or through his authorized delegates, at all

¹ <https://www.nytimes.com/2018/03/18/nyregion/testilying-police-perjury-new-york.html>.

² <https://www.law.com/newyorklawjournal/2018/10/23/suit-alleges-manhattan-da-is-hiding-list-of-police-officers-with-compromised-credibility>.

relevant times had final authority, and constitutes a City policymaker for whom the City is liable, with respect to compliance by NYPD employees with the above- mentioned constitutional requirements.

87. During all times material to this Complaint, the Police Commissioner owed a duty to the public at large and to Plaintiff, which he knowingly and intentionally breached, or to which he was deliberately indifferent, to implement policies, procedures, customs, practices, training and discipline sufficient to prevent or deter conduct by his subordinates violating the aforementioned constitutional rights of criminal suspects or defendants and of other members of the public.

88. The aforesaid policies, procedures, regulations, practices and/or customs of Defendant City and the NYPD were collectively and individually a substantial factor in bringing about the aforesaid violations by the Individual Police Defendants of Plaintiff's rights under the Constitution and laws of the United States.

89. By virtue of the foregoing, Defendant NYC is liable for having substantially caused Plaintiff's injuries, including but not limited to violations of Plaintiff's constitutional rights.

90. That as a result of the foregoing, the Defendants, their agents, servants and/or employees, willfully and wantonly violated the civil rights of the Plaintiff, LAMONT BROOKS.

91. That the Defendants, their agents, servants and/or employees, deprived the Plaintiff, LAMONT BROOKS, of his civil rights under the color of law. They are liable to the Plaintiff in an action pursuant to Title 42 Section 1983 of the United States Code (hereinafter "§1983"). That the Police Officers as individuals and through their actions as employees, and other police officers, acting within the scope of their duties, under color of law, deprived the Plaintiff, LAMONT BROOKS, of his civil rights, privileges, and/or immunities, secured by the Constitution of the United States, and of the State of New York, and they are liable to the Plaintiff, pursuant to §1983.

92. That the Defendants deprived the Plaintiff of his civil rights, privileges and immunities, secured by the Constitution and the Laws of the United States, including violating his Fourteenth Amendment Right, rights of due process, his First Amendment Right, his Fourth

Amendment Right, his property rights, and his right of privacy.

93. That the Defendants' depriving the Plaintiff of his civil rights, acted under color of state and local law.

94. That the Defendants depriving the Plaintiff of his constitutional rights, acted under color of statute, ordinance, regulation, custom or usage of the Laws of the State of New York, and misused power which they possessed by virtue of State Law.

95. That the Defendants acted pursuant to official policy and/or governmental customs.

96. In committing the acts and omissions complained of herein, Defendants acting under color of state law, deprived Plaintiff of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from arrest without probable cause;
- b. the right to be free from the creation of false, fabricated evidence;
- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which he did not consent; and
- d. the right to be free from the use of excessive and unreasonable force and seizure.

97. In committing the acts and omissions complained of herein, Defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

98. As a direct and proximate result of the actions of Defendants including deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

99. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

100. The unconstitutional conduct of the Individual NYPD Officer Defendants was directly and proximately caused by de facto policies, practices, and/or customs devised, implemented, enforced, encouraged, and sanctioned by the City whereby written policies are ignored in practice in favor of de facto policies.

101. The foregoing customs, policies, practices, procedures, rules, and usages include, but are not limited to, making arrests without probable cause and committing perjury and a failure by the NYPD to train officers regarding such unconstitutional conduct.

102. The existence of the foregoing customs, policies, procedures, rules, and usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in recent civil rights actions filed against the City including, but not limited to:

- a. *Cordero v. City of New York et al.*, 15-cv-3436 (JBW)(MDG) (E.D.N.Y.): police officers arrested a 58-year-old bodega owner as a result of the defendant officers' false and fabricated allegations against him;
- b. *Garnett v. City of New York et al.*, 13-cv-7083 (JSR) (JLC) (S.D.N.Y.): arrest of a man based on false and misleading information provided by undercover officer defendants;
- c. *Caraballo v. City of New York et al.*, 11-cv-8917 (JSR) (S.D.N.Y.): police officers arrest three individuals in Manhattan on false charges including assault in the second degree on a police officer; all charges were dismissed; CCRB found that officers lacked probable cause to arrest; and
- d. *Hemphill v. City of New York et al.*, 11-cv-2160 (AKH) (S.D.N.Y.): Police officers arrested an individual on false charges, including obstructing governmental administration in the second degree.

103. Defendant NYC developed and maintained customs, policies and practices with respect to falsifying evidence, exhibiting deliberate indifference to the constitutional rights of its citizens, which caused the violations of Plaintiff's rights.

104. In 2014, the Civilian Complaint Review Board identified this disturbing trend: "From 2010 through 2013, the CCRB noted 26 allegations of false official statements: 2 in 2010; 3 in 2011; 8 in 2012; and 13 in 2013. However, in 2014, the number increased dramatically, and the Board noted 26 instances in just one year where investigations uncovered possible false official statements. In 23 instances, the underlying FADO complaint was substantiated. All 52 complaints occurred prior to 2014."

105. In 2015, this number rose to 59 and, in 2016, the number again was 23 instances.

106. Numerous examples of such falsifications can be found through the present. See, e.g., Rick Rojas, Two N.Y.P.D. Officers Are Charged With Lying About a Suspect, N.Y. Times, Feb. 17, 2017, available at <https://www.nytimes.com/2017/02/16/nyregion/nypd-sasha-cordoba-kevin-desormeau.html> (“Cyrus R. Vance Jr., the Manhattan district attorney, said the charges against the detectives were a ‘gross violation of their training, N.Y.P.D. protocol and the law. When members of law enforcement commit misconduct,’ he added, ‘they threaten the credibility of our work and the safety of the citizens whom we are sworn to protect. J. David Goodman, Review Board Notes Rise in New York Police Officers’ False Statements, N.Y. Times, May 14, 2015 (“Officers documented 7,283 searches after stops in 2014, according to Police Department data contained in the report. Of those, one in 12 resulted in a complaint to the review board, a frequency that has increased sharply over past two years. In many cases, Mr. Emery said, the problem could be resolved by requiring further training.”); Michelle Alexander, Why Police Lie Under Oath, N.Y. Times, Feb. 2, 2017 (“The natural tendency to lie makes quota systems and financial incentives that reward the police for the sheer numbers of people stopped, frisked or arrested especially dangerous. One lie can destroy a life, resulting in the loss of employment, a prison term and relegation to permanent second-class status.”).

107. In fact, in an opinion issued on October 17, 2017 in *Cordero v. City of New York*, a case involved the alleged false arrest of a 58-year-old bodega owner, the Honorable Jack Weinstein granted a Plaintiff’s request to proceed on a Monell claim on the basis that “the police department has long been aware of a wide-spread practice of false arrests at the end of tours of duty in order to obtain overtime and that it has failed to sufficiently address this practice. Plaintiff argues that the city’s policy is not to track or adequately discipline policemen for testifying falsely. And that it has failed to supervise or properly discipline police officers with a record of being unsuccessful defendants in Title 42 U.S. Code Section 1983 cases because they fabricated evidence.” *Cordero v. City of N.Y.*, No. 15-CV-3436, 2017 U.S. Dist. LEXIS 171961, at *5 (E.D.N.Y. Oct. 17, 2017).

108. Judge Weinstein aptly stated that “police officers, unlike civilians, have the power to terminate constitutionally protected liberty; with this power comes great responsibility, as well as the need for appropriate oversight.” Id.

109. At all times material to this Complaint, Defendant NYC failed to properly train, screen, supervise, or discipline its employees and police officers, including Individual NYPD Officer Defendants, and failed to inform any supervisors of their need to train, screen, supervise, or discipline the Individual NYPD Officer Defendants.

110. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff’s constitutional rights as guaranteed under 42 U.S.C. 1983 and the United States Constitution, including the Fourth and Fourteenth Amendments.

111. As a direct and proximate result of the foregoing acts, omissions, systemic deficiencies, and the City’s deliberate indifference, the Plaintiff’s constitutional rights were violated, because of which the Plaintiff suffered substantial damages at an amount to be determined at trial.

112. That as a result of the foregoing the Plaintiff, LAMONT BROOKS, sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

113. The unlawful conduct of Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

114. The acts of the Individual NYPD Officer Defendants constituted conduct under color of state law which deprived Plaintiff of rights, privileges, and immunities secured by the Constitution and laws of the United States.

115. Defendants jointly devised a false, exculpatory version of the events of August 15, 2017 and submitted false reports and statements to support and corroborate the fabricated charges lodged against the Plaintiff.

116. The Defendants knew that there was no basis to arrest and use excessive force against

the Plaintiff, and conspired together to cover it up by falsely claiming that the Plaintiff was, *inter alia*, resisting arrest.

117. As a direct and proximate result of the conduct alleged herein, the Defendants conspired to and, thereafter, deprived Plaintiff of the right to be free from, *inter alia*, false arrest and imprisonment, malicious prosecution, the use of excessive and unreasonable force and seizure, a clearly established right, under the Fourth and Fourteenth Amendments of the United States Constitution.

118. In committing the acts and omissions complained of herein, the Defendants breached their affirmative duty to intervene to protect the constitutional rights of the Plaintiff from infringement by other law enforcement officers in their presence.

119. The unlawful conduct of these Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

120. That by reason of the foregoing, the Plaintiff, LAMONT BROOKS, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF
OF PLAINTIFF, LAMONT BROOKS**

121. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

122. That the Defendants, their police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff, LAMONT BROOKS.

123. That by reason of the foregoing the Plaintiff, LAMONT BROOKS, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF
OF PLAINTIFF, LAMONT BROOKS**

124. That at all times hereinafter mentioned, Plaintiff repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

125. That at all times herein mentioned the police officers involved in the incident complained of herein were negligently hired and/or trained and/or supervised and/or retained by the Defendant NYC.

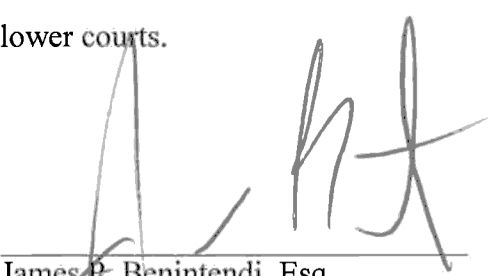
126. That as a result of the negligent retention, hiring and training of these police officers and employees, negligently and improperly carried out their duties in arresting, in imprisoning, and in prosecuting the Plaintiff.

127. That as a result of the foregoing the Plaintiff, LAMONT BROOKS, sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, the Plaintiff, LAMONT BROOKS, demands judgment against the Defendants, in the First Cause of Action, in a sum which exceeds jurisdictional limits of all lower courts; the Plaintiff demands judgment against the Defendants, in the Second Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the Plaintiff demands judgment against the Defendants, in the Third Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the Plaintiff demands judgment against the Defendants, in the Fourth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the Plaintiff demands judgment against the Defendants, in the Fifth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the Plaintiff demands judgment against the Defendants, in the Sixth Cause of Action, in a sum which exceeds the jurisdictional limits of all lower courts; the Plaintiff demands judgment against the Defendants, and in the Seventh Cause of Action, in a sum

which exceeds the jurisdictional limits of all lower courts.

Dated: Brooklyn, New York
July 8, 2020



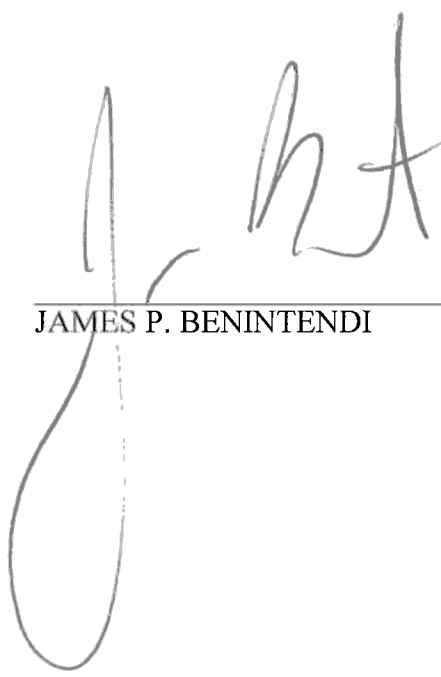
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Attorneys for Plaintiff(s)
LAMONT BROOKS
1901 Emmons Avenue, Suite 206
Brooklyn, New York 11235
(718) 615-0044
Our File No.: 2229418

ATTORNEY'S VERIFICATION

JAMES P. BENINTENDI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at LOZNER & MASTROPIETRO, attorneys of record for Plaintiff, LAMONT BROOKS. I have read the annexed **AMENDED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
July 8, 2020



JAMES P. BENINTENDI